

26VECV00240 26VECV00240

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-06-30

Motion: DEFENDANT'S MOTION TO COMPEL ARBITRATION

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Case Number: 26VECV00240 Hearing Date: June 30, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES -
NORTHWEST DISTRICT

ARMEN KHANYAN, an individual,

Plaintiff,

vs.

HYUNDAI MOTOR AMERICA, a corporation; and DOES 1-10,
inclusive,

Defendants.

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CASE NO: 26VECV00240

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
TO COMPEL ARBITRATION

Dept. U

8:30 a.m.

June 30, 2026

I.

BACKGROUND

This case is a lemon law action filed
by Plaintiff Armen Khanyan
against Defendant Hyundai Motor America.

On January 14, 2026, Plaintiff filed his complaint
against Defendant, alleging breaches of warranties in violation of the
Song-Beverly Act.

On February 27, 2026, Defendant filed its motion to compel arbitration.

On June 15, 2026, Plaintiff filed his opposition.

On June 23, 2026, Defendant filed its reply.

II.

LEGAL

STANDARD

Parties may be

compelled to arbitrate a dispute upon a finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) the agreement covers the controversy or controversies in the parties' dispute. Code Civ. Proc., § 1281.2; Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961 (Omar).

III.

REQUEST FOR

JUDICIAL NOTICE

Defendant requests that the

Court take judicial notice of the complaint.

The Court takes judicial notice as requested.

IV.

DISCUSSION

Defendant moves to

compel arbitration on the ground that there exists an agreement to arbitrate in the Owner's Handbook & Warranty Information booklet that accompanied Plaintiff's vehicle (the "Warranty Booklet").

Defendant argues

Plaintiff is bound to arbitrate his dispute with Defendant because the Warranty Booklet states that the vehicle's warranty is subject to the terms of a binding arbitration provision:

"IF YOU PURCHASED OR LEASED YOUR VEHICLE IN CALIFORNIA, YOUR WARRANTY IS MADE SUBJECT TO THE TERMS OF THIS BINDING ARBITRATION PROVISION. BY USING THE VEHICLE, OR REQUESTING OR ACCEPTING BENEFITS UNDER THIS WARRANTY, INCLUDING HAVING ANY REPAIRS PERFORMED UNDER WARRANTY, YOU AGREE TO BE BOUND BY THESE TERMS. IF YOU DO NOT AGREE WITH THESE TERMS, PLEASE CONTACT US AT WITHIN THIRTY (30) DAYS OF YOUR PURCHASE OR LEASE TO OPT-OUT OF THIS ARBITRATION PROVISION."

(Ameripour decl., Exh. 2, p. 14.)

Defendant argues Plaintiff

should be estopped from asserting that the absence of his signature on a written contract precludes its enforcement, citing *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 269. However, this principle only applies where there is an enforceable contract that is defective because one of the parties failed to sign. Here, Defendant presents insufficient evidence that the Subject Vehicle's warranty constitutes an enforceable contract under basic principles of contract formation.

Plaintiff attests that: (1) he

never noticed the Warranty Booklet inside a package in his vehicle's glove compartment, which also included pamphlets and other booklets, until months after purchase; (2) he was never told such documents were located there, nor that he was required to opt-out of any post-sale arbitration agreement contained in the Warranty Booklet; (3) prior to Defendant filing the instant motion, he was unaware that pages 12-14 of the Warranty Booklet (which is approximately 48 pages long) included a post-sale arbitration agreement. The Warranty Booklet is unsigned by the parties and does not include a signature line.

(Khanyan decl., ¶¶ 3-12; Ameripour decl., Exh. 2.)

Defendant fails to show that

the arbitration provision contained in the Warranty Booklet constituted an offer to which Plaintiff assented. Thus, the statements included in the Warranty Booklet do not amount to an enforceable contract. See *Leslie v. Brown Bros. Inc.* (1929) 208 Cal. 606, 621 (offer cannot be turned into agreement merely because the person to whom it is made makes no reply, even where offer states that silence will be taken as consent); see *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1291 (offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious); see *Golden Eagle Ins. Co. v. Foremost Ins. Co.* (1993) 20 Cal.App.4th 1372, 1385 (silence or inaction do not constitute acceptance).

Defendant argues the Court should find

otherwise, relying on the case *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899 (Sanchez).

In Sanchez, the Supreme Court stated that a defendant “was under no obligation to highlight the arbitration clause of its contract, nor was it required to specifically call that clause to [the plaintiff’s] attention.” Id. at 914. Critically, however, the Supreme Court found that the subject arbitration provision was included within the text of an enforceable contract. Id. at p.

907. The issue of whether the defendant had an obligation to highlight the contract’s arbitration provision did not come up until the unconscionability stage of the Supreme Court’s analysis. Id. at pp. 910-915.

This case is readily distinguishable from Sanchez because the Court has already determined that the Warranty Booklet containing the language regarding arbitration is not an enforceable contract under basic principles of contract formation.

Because there is no contract, there is no need to consider whether the contract is unconscionable. Thus, it is irrelevant whether Defendant called Plaintiff’s attention to the existence of the arbitration provision, as the provision is not included in an enforceable contract.

In sum, the text of the Warranty Booklet does not constitute an enforceable contract under principles of estoppel or foundational theories of contract formation. Because Defendant is without evidence that the statements regarding arbitration in the Warranty Booklet amount to a contract, those statements are not grounds on which the Court will order Plaintiff to arbitrate his dispute with Defendant. See Omar, supra, Cal.App.4th at p. 961. L.A. Pacific Ctr., Inc. (2006) 144 Cal. App.4th 754, 758); see also Norcia v. Samsung Telecommunications America, LLC (9th Cir. 2017) 845 F.3d 1279 (“[t]he language in a written warranty agreement is [only] ‘contractual’ in

the sense that it creates binding, legal obligations on the seller, but a warranty does not impose binding obligations on the buyer.”)

Defendant presents no alternative theory for compelling arbitration. The motion is denied.

V.

CONCLUSION

Defendant Hyundai Motor America's
motion to compel Plaintiff Armen Khanyan to arbitrate his complaint against Defendant Hyundai
Motor America is DENIED.

Plaintiff Armen Khanyan is ORDERED
to give notice.

DATED: June 30, 2026

Lee Arian

Judge of the Superior Court